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STATE OF COLORADO

DIVISION OF MINERALS AND GEOLOGY

Department of Natural Resources

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DEPARTMENT OF
NATURAL
RESOURCES

Roy Romer
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James S. Lochhead
Executive Director

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October 20, 1998

St. Vrain Valley Community Watchdogs
P.O. Box 82
Hygiene, CO 80533-0082

RE: Southdown Corporation-Lyons, Pit C

Dear Sirs,

This letter is being written in response to your request for a copy of the Division of Minerals and Geology (DMG) reclamation permit issued to Southdown Corporation for their "new site—Pit C". Specifically, your organization requested details regarding the disposal of cement kiln dust in the pit in question. While Southdown Corporation holds three DMG permits none of them are labeled "Pit C", and all were issued in the 1970's. At this time, we are assuming that you are referring to the Lyons Quarry, Permit #M-77-208.

DMG would also like to clarify that the permit issued--- that is, the official document that states that Southdown Corporation has been approved for mining and reclamation in the State of Colorado--- does not contain the details which your organization seems to be interested in. Those are always contained in some portion of the permit file, either in the original mining or environmental reclamation plan (Exhibit D or E) or an amended plan filed some time later (an amended Exhibit D or E). Both would be on file here in Denver. At present, Permit #M-77-208 does not contain any amendments. A copy of the documents here at the Division can be obtained from us in person, weekdays, between the hours of 9a.m. and 4p.m. A nominal copying fee is required if you wish copies to be made.

Due to your interest in this matter, DMG is re-evaluating the current permit requirements for this site, to ascertain that they comply with our most recent groundwater requirements and environmental protection regulations. After we have finished reviewing the material, we will send a letter to Southdown-Lyons Corp. with our findings. Your organization will receive a copy of this letter at that time.

If you have any further questions, please contact me at (303) 866-3567.

Sincerely,

Christina L. Kamnikar
Environmental Protection Specialist

Cc: Carl B. Mount, DMG
Harry Posey, DMG
John Lohr, Southdown Corp.